UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION

Interconnection of Large Loads to the Interstate Transmission System	))	Docket No. RM26-4

COMMENTS OF
THE MAINE OFFICE OF THE PUBLIC ADVOCATE

The Maine Office of the Public Advocate (Maine OPA) respectfully submits these comments in response to the Notice Inviting Comments issued by the Federal Energy Regulatory Commission (Commission) in the above-captioned matter on October 27, 2025.

I. COMMUNICATIONS

Communications and correspondence regarding this filing should be directed to the following:

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II. PARTY DESCRIPTION

The Maine Office of the Public Advocate is an agency of the State of Maine authorized by the Maine legislature to represent the interests of consumers of utility services in utility regulatory proceedings and other forums, including participation on behalf of Maine consumers in federal proceedings "in which the subject matter of the action affects the consumers of any utility doing business in this State."[1] The Maine OPA is more particularly charged in its representation with prioritizing the interests of low income customers, residential customers, and small business customers.[2] The Maine OPA filed a timely Motion to Intervene in this proceeding on November 7, 2025.

III. DISCUSSION

As described herein, the Maine OPA supports the Secretary of Energy's proposal to implement reforms to ensure the timely and orderly interconnection of large loads to the interstate transmission system.[3] However, the Maine OPA urges the Commission to proceed with caution to ensure that any final rule protects existing ratepayers by requiring large loads to bear the full cost of necessary network upgrades, by respecting existing state jurisdiction over transactions that are fundamentally retail in nature, and by including provisions that minimize any adverse impacts on wholesale market prices and transmission rates from large load interconnection.

First, load and hybrid facilities should be responsible for 100% of the network upgrades that they are assigned through interconnection studies. The proposed Advance Notice of Proposed Rulemaking accompanying the Secretary's Letter (proposed ANOPR) expresses explicit support for this protection.[4] However, the proposed ANOPR goes on to seek comment on whether such interconnection costs should be offset

[1] Me. Rev. Stat. tit. 35-A, § 1702.

[2] Me. Rev. Stat. tit. 35-A, § 1702-A(3).

[3] Secretary of Energy's October 23, 2025 letter to the Commission under section 403 of the Department of Energy Organization Act, 42 U.S.C. § 7173(a) (the Secretary's Letter).

[4] Proposed ANOPR at P 25.

through a crediting mechanism.[5] Any crediting mechanism, by necessity, results in the interconnecting entity being relieved of bearing 100% of cost of network upgrades, thus transferring the cost responsibility for the upgrades to other ratepayers. Interconnecting generators do not receive such credits, neither should interconnecting load.

Second, the Commission should limit the expansion of its jurisdiction relating to these large load customer to interconnection. Again, the proposed ANOPR expresses explicit support for this protection.[6] These large loads will be end use customers engaging in retail transactions. Such customers are currently and should remain subject to state jurisdiction regarding the recovery of retail costs. These costs include billing and metering costs, administrative and general costs, and public policy costs recovered through retail electricity rates. State jurisdiction also includes the reasonable allocation of costs among retail customer classes, including the allocation of the transmission revenue requirement. Finally, state jurisdiction includes authority to impose conditions on the sale of commodity electricity, such as requiring the licensing of competitive energy suppliers and requiring that retail sales of energy comply with renewable portfolio standards.

The State of Maine has a number of existing large industrial loads interconnected directly to the high voltage the transmission system. These loads are appropriately treated as retail customers and are required to pay a retail rate. Retail revenue requirements are allocated to among customer classes on a cost of service basis that reflects the nature of the service that they receive, including the voltage at which they

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[5] *Id.*

[6] *Id.* at P 15.

take service. This system has been in place for many years and appropriately respects the boundary between state and federal jurisdiction. We urge the Commission to limit federal jurisdiction to the interconnection process, including related charges, and leave the state jurisdiction otherwise intact.

Third, rapid load growth may present challenges relating to resource adequacy, particularly in restructured markets such as those of ISO New England. In such markets, no entity has direct responsibility to plan and construct generation to serve new loads. Rather, these regions rely on their markets to provide adequate compensation to encourage the development of new generating facilities and the continued operation of existing facilities. Absent the corresponding development of supply resources, the presence of new large loads will drive up market clearing prices for both energy and capacity in these wholesale markets, increasing retail prices for other customers. It may also contribute to congestion, resulting in uplift charges that ultimately must be borne by all loads in congested areas. While these impacts may occur regardless of whether the Commission implements the policies set forth in the proposed ANOPR, we urge the Commission to proceed with caution.

In this regard, any interconnection process adopted by the Commission for large loads should parallel the process applied to interconnecting generators. The process for interconnecting large loads should not be a more accelerated process than that for generators. Doing so would likely trigger price increases for other customers if new loads are not matched with new generation.

The Maine OPA also supports the recommendation to allow and/or incentivize large load customers to participate in curtailment, load flexibility, and other demand response mechanisms.[7] Such mechanisms allow these new large loads to minimize their impact on both transmission rates and wholesale market prices, as well as to reduce the cost of interconnection and the ongoing cost of electricity to these customers. The Maine OPA therefore urges the Commission to adopt the ANOPR principles that seek to incentivize large loads "to be curtailable and dispatchable" by a "system operator."[8]

IV. CONCLUSION

The Maine OPA is pleased to express its support for the Secretary of Energy's proposal, but urges the Commission to ensure that any final rule that it may adopt protects existing ratepayers by requiring that large loads bear the full cost of necessary network upgrades, by respecting existing state jurisdiction over transactions that are fundamentally retail in nature, and by including provisions that minimize any adverse impacts on wholesale market prices and transmission rates from large load interconnection.

Respectfully submitted,

/s/ Andrew Landry

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November 21, 2025

[7] *Id.* at P 24.

[8] *Id.*

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document upon each person designated on the official service list compiled by the Secretary in this proceeding.

/s/ Andrew Landry

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November 21, 2025